

STATE OF INDIANA)	IN THE GRANT COUNTY SUPERIOR COURT
) SS:	
COUNTY OF GRANT)	CAUSE NO:
	)
BRAD BARTON	)
	)
Plaintiff,	)
	)
vs.	)
	)
STEVEN MERSEREAU-KEMPF	)
and WAL-MART	)
TRANSPORTATION, LLC	)
	)
Defendants.	

COMPLAINT FOR DAMAGES

COMES now the Plaintiff, BRAD BARTON ("Plaintiff") by counsel, and for his Complaint for Damages against the Defendants, STEVEN MERSEREAU-KEMPF ("Kempf") and WAL-MART TRANSPORTATION, LLC ("Wal-Mart") (sometimes collectively referred to as "Defendants") alleges and asserts that:

1. At all times mentioned herein the Plaintiff was and is a resident of the City of Upland, County of Grant, State of Indiana.
2. At all times mentioned herein, Defendant Kempf was a resident of the City of Midland, State of Michigan.
3. At all times mentioned herein, Defendant Wal-Mart was a domestic company licensed to and doing business in the State of Indiana with its principal place of business located at 702 SW 8th Street, Bentonville, Arkansas 72716.
4. At all times relevant to this Complaint, Defendant Kempf, was an employee, agent, contractor or servant of Wal-Mart.

5. All of the acts and/or omissions of Wal-Mart herein alleged, were performed and/or omitted by and through the agents, contractors, servants, and/or employees of Wal-Mart, including but not limited to Kempf while they were acting within the scope and course of their contract and/or employment.

6. At the time of the collision, Kempf was operating a commercial vehicle while acting within the course and scope of his employment, agency and/or contract with Wal-Mart.

7. In accordance with the law, Wal-Mart is vicariously liable and responsible for any losses caused by its employee, agent and/or contractor including, but not limited to, Defendant Kempf's negligence.

8. At all times mentioned herein, there was and is now near the City of Gas City, County of Grant, State of Indiana, a public thoroughfare known as State Road 22, which generally runs in an easterly and westerly direction.

9. On December 14, 2022, the Plaintiff was traveling westbound on State Road 22 with the right of way.

10. At the aforementioned time and place, Defendant Kempf attempted to turn eastbound onto State Road 22 in front of the Plaintiff, causing a collision.

10. The aforementioned collision of December 14, 2022 between Plaintiff and Defendant Kempf was directly and proximately caused by the carelessness and negligence of Kempf.

11. Wal-Mart is liable for Kempf's acts of negligence, which proximately caused the December 14, 2022 collision, described herein.

12. Wal-Mart is required to comply with all the state and federal regulations regarding the operation of commercial vehicles of any state in which its commercial vehicles operate by its employees or agents or contractors.

13. Wal-Mart is required to comply with all the regulations articulated within the Federal Motor Carrier Safety Administration Regulations applicable to the operation of commercial vehicles as defined therein or in the applicable state statutory provisions.

14. Defendant Kempf is likewise charged with strict compliance with all of the regulations applicable to him as contained within the Federal Motor Carrier Safety Administration Regulations in addition to the laws of the state in which he operates a commercial vehicle as defined therein.

15. Defendant Wal-Mart is guilty of the following additional acts of negligence, gross negligence, and/or omissions, which proximately caused or proximately contributed to the collision of December 14, 2022, described herein above:

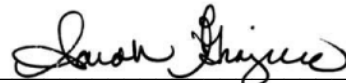
- a. Wal-Mart negligently and carelessly failed to properly select, train, and or supervise its drivers including but not limited to, Defendant Kempf;
- b. Wal-Mart negligently and carelessly put or allowed to remain on the road an unqualified and/or reckless driver including, but not limited to Defendant Kempf;
- c. Wal-Mart negligently and carelessly failed to screen and test its drivers including, but not limited to Defendant Kempf, periodically to monitor and evaluate their safety orientation;
- d. Wal-Mart negligently and carelessly failed to develop, promulgate, adopt, and/or implement safety policies, procedures and practices for its drivers including, but not limited to Defendant Kempf;
- e. Wal-Mart negligently and carelessly permitted, allowed, and/or failed to stop its drivers, including, but not limited to Defendant Kempf, from violating rules, regulations, and/or statutes regarding driver records and logs and/or the maintenance of the drivers' vehicles on the roadway;

- f. Wal-Mart negligently and carelessly failed to provide periodic systematic safety and/or defensive driving training for its drivers including, but not limited to Defendant Kempf;
- g. Wal-Mart negligently and carelessly failed to provide remedial training of its drivers including, but not limited to, Defendant Kempf;
- h. Wal-Mart negligently entrusted its vehicle to Defendant Kempf; and
- i. Any such other negligence or gross negligence and violations of rules, regulations, and statutes as may be shown during the discovery of this matter and/or during the final jury trial of this matter.

16. As a direct and proximate result of the carelessness and negligence of Defendants, the Plaintiff was harmed, sustained losses and related damages, some permanent in nature.

WHEREFORE, the Plaintiff, BRAD BARTON prays that the Court grant judgment against the Defendants STEVEN MERSEREAU-KEMPF and WAL-MART TRANSPORTATION, LLC in an amount commensurate with his harms and losses, for pre and post judgment interest, for the costs of this action, and for all other relief just and proper in the premises.

Respectfully submitted,

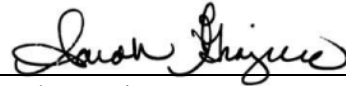


Sarah Graziano, # 21650-49
Attorney for Plaintiff

REQUEST FOR TRIAL BY JURY

Comes now the Plaintiff, BRAD BARTON by counsel and files herein his request for trial by jury for the above action.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Sarah Graziano", is written over a horizontal line.

Sarah Graziano, # 21650-49
Attorney for Plaintiff

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